

# HOUSE . . . . . No. 5139

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**The Commonwealth of Massachusetts**

PRESENTED BY:

***Kenneth P. Sweezey***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a review process of guidelines for managing recreational use of beaches to protect piping plovers, terns, and their habitats in Massachusetts.

PETITION OF:

| NAME:                     | DISTRICT/ADDRESS:   | DATE ADDED:       |
|---------------------------|---------------------|-------------------|
| <i>Kenneth P. Sweezey</i> | <i>6th Plymouth</i> | <i>10/24/2025</i> |

# HOUSE . . . . . No. 5139

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By Representative Sweezy of Duxbury, a petition (subject to Joint Rule 12) of Kenneth P. Sweezy for legislation to establish a review process of guidelines for managing recreational use of beaches to protect piping plovers, terns and their habitats. Environment and Natural Resources.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act establishing a review process of guidelines for managing recreational use of beaches to protect piping plovers, terns, and their habitats in Massachusetts.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. The Massachusetts Department of Fish and Game, through the Division of  
2   Fisheries and Wildlife shall conduct a review of their Guidelines for Managing Recreational Use  
3   of Beaches to Protect Piping Plovers, Terns, and Their Habitats in Massachusetts not less than  
4   once every two years.

5           SECTION 2. In conducting the review required under Section 1, the Division of Fisheries  
6   and Wildlife shall actively consult with all applicable municipal or regional beach managers  
7   responsible for the oversight and enforcement of said guidelines.

8           SECTION 3. The Massachusetts Division of Fisheries and Wildlife shall convene at least  
9   two public hearings during each review period to solicit public comment. Notice of the hearing  
10   shall be posted no fewer than fourteen days in advance. Such hearing shall be held within an

- 11 applicable community; provided, however, that no single community shall host the hearing in
- 12 two consecutive review periods.